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Case Number: 25TRCV03610 Hearing Date: September 3, 2026 Dept: P

Motion for Attorney's Fees and Costs

Moving Party: Plaintiff Eun Park

Responding Party: Defendant General Motors LLC

RULING

The court considered the moving papers, opposition, and reply. Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of \$10,695.25, consisting of \$9,100.00 in previously incurred fees, \$1,000.00 in anticipated fees pertaining to the instant motion, and \$595.25 in costs.

PROCEDURAL ISSUES

Pursuant to California Rules of Court, Rule 3.1113(d), "[n]o reply or closing memorandum may exceed 10 pages." Here, Plaintiff's reply memorandum is 16 pages, in violation of Rule 3.1113(d). The court exercises its discretion to consider Plaintiff's reply brief.

PROCEDURAL BACKGROUND

On October 21, 2025, Plaintiff Eun Park ("Plaintiff") filed a complaint against Defendant General Motors LLC ("GM") and DOES 1 through 50, inclusive, alleging two causes of action for: (1) Breach of Implied Warranty of Merchantability Under the Song-Beverly Warranty Act; and (2) Breach of Express Warranty Under the Song-Beverly Warranty Act.

On May 7, 2026, Plaintiff filed the instant motion. On August 21, 2026, GM filed an opposition. On August 26, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that in October 2024, Plaintiff leased a 2024 Cadillac Lyriq (the "Subject Vehicle") from GM and received an express written warranty from GM in connection with Plaintiff's purchase. (Complaint, ¶¶ 8-9.) Plaintiff alleges that during the

warranty period, the Subject Vehicle developed defects. (Complaint, ¶ 11.) Plaintiff alleges that despite multiple repair attempts, GM's designated repair facilities have been unable to repair the Subject Vehicle to conform to warranty. (Complaint, ¶ 12.)

LEGAL STANDARD

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, the buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, Section 1794(d)). The buyer has "the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817.)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Moving Party's Argument

Plaintiff seeks a total award of \$18,624.25, consisting of \$16,390.00 in attorney's fees, \$595.25 in costs, and a 1.1 multiplier, equivalent to \$1,639.00. Plaintiff states that his counsel will spend a total of 29.8 hours on this matter including a total of 12.2 hours to prepare the instant motion and anticipated hours to prepare the reply brief and attend the hearing. Plaintiff argues that the application of a 1.1 multiplier is warranted given the contingent nature of this case, the six months spent by counsel on this matter, the exclusion of other cases due to the time limitations of Plaintiff's counsel, the experience of Plaintiff's counsel, and the favorable result achieved for Plaintiff. Next, Plaintiff argues that he is entitled to recover costs and requests \$595.25 in litigation expenses.

Opposing Party's Argument

GM argues that at least 19.2 of Plaintiff's counsel's total of 29.8 hours billed were not reasonably incurred, because approximately 40% of Plaintiff's counsel's time billed pertains solely to the instant motion including 7 hours of anticipated time drafting a reply brief and attending the hearing. GM additionally challenges Plaintiff's counsel's total time billed reviewing GM's initial disclosures, conducting client intake tasks, drafting initial disclosures and document production, drafting the templated complaint, and reviewing GM's answer and standard protective order. Next, GM argues that Plaintiff's counsel has not met his burden of showing that the requested rate of \$550 per hour is reasonable because Plaintiff's counsel has not provided any evidence in support of his requested rate. GM argues that the court should reduce Plaintiff's counsel's requested rate to no more than \$500 per hour. GM next argues that the court should not award Plaintiff's counsel a multiplier because this case was straightforward and routine. Finally, GM argues that the court should strike or tax Plaintiff's counsel's request for \$18.25 in electronic filing costs associated with Plaintiff's case management statement.

Reply Argument

Plaintiff argues that Plaintiff's fee request is justified because the intake and research work was necessary to evaluate Plaintiff's claim, and the complaint drafting, document review, and settlement coordination protected Plaintiff's interests. Plaintiff argues that counsel's use of forms and templates does not justify fee reductions because counsel was still required

to review Plaintiff's facts, confirm the legal basis for the claim, ensure proper service and filing, and adapt the templates to the particular circumstances. Plaintiff argues that counsel's 4.2 hours of time spent preparing the instant motion is clearly compensable and argues that the 7.0 hours anticipated to prepare the reply and attend the hearing are conservative estimates. Plaintiff argues that the total of 29.8 hours claimed here is reasonable given the complex statutory claim, GM's aggressive discovery tactics, extensive document review, and the negotiation of a favorable settlement. Plaintiff argues that a 1.1 multiplier is justified given the contingency risk and counsel's skill in achieving favorable results. Finally, Plaintiff argues that the \$595.25 in costs are necessarily incurred and recoverable.

Merits of the Motion

A. Entitlement to Fees

The Song-Beverly Act provides that a buyer who prevails in their action is entitled to an award "as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code Section 1794(d).)

Here, Plaintiff's counsel declares that on March 30, 2026, "the parties formally agreed to resolve this action and Defendants stipulated and agreed that Plaintiff would be the 'prevailing party' so that Plaintiff could seek attorney's fees and costs by motion." (Lee Decl., ¶ 5.) Plaintiff's counsel declares that GM's Section 998 Offer of Compromise was accepted by Plaintiff on March 30, 2026, and a copy of the Section 998 Offer is attached as Exhibit 1 to Plaintiff's counsel's declaration. (Lee Decl., ¶ 5; Exh. 1.)

Therefore, the court finds that Plaintiff is entitled to recover attorney's fees.

B. Reasonableness of Rates

1. Hourly Rate

Here, Plaintiff's counsel, David Lee, declares that his billing rate is \$550 per hour. (Lee Decl., ¶ 4.) David Lee is the managing attorney of Plaintiff's counsel's law firm. (Lee Decl., ¶ 2.)

In assessing the reasonableness of hourly billing rates, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.)

GM challenges Plaintiff's counsel's requested hourly rate on the grounds that Plaintiff has provided no supporting evidence. The court agrees and observes that Plaintiff's counsel has not offered any evidence in support of his requested hourly rate with the exception of briefly discussing his law school experience. (Lee Decl., ¶ 3.)

Further, the court finds that requested rates for attorneys who are working on a contingency basis do not provide sufficient reference under the lodestar methodology. This is because the "charged" rates are never borne by a paying client. As a consequence, the court balances the requested rate with legal rates for similar areas of litigation involving straightforward legal claims such as this case which are actually paid by a client. Having conducted that analysis, the court exercises its discretion to reduce managing attorney David Lee's requested rate to \$500 per hour. In so doing, the court assesses the type of litigation, counsel's experience, and this court's knowledge of the prevailing hourly rate within the local legal community.

2. Excessive Hours

Here, GM challenges Plaintiff's counsel's billing entries pertaining to: (1) preparing the instant motion; (2) reviewing GM's initial disclosures; (3) conducting pre-litigation tasks; (4) drafting initial disclosures and document production; (5) drafting the complaint; and (6) reviewing GM's answer and protective order.

In challenging attorneys' fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with sufficient arguments and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

First, the court has reviewed Plaintiff's counsel's May 7, 2026 billing entries for drafting the instant motion, drafting the memorandum of costs and compiling the related invoices, and drafting the declaration in support of the instant motion, totaling 5.2 hours. (Lee Decl., Exh. A, p. 4.) Based on Plaintiff's counsel's use of templates and the routine nature of this lemon law matter, the court agrees that Plaintiff's counsel's total time billed for preparing the instant motion is excessive. Thus, the court exercises its discretion to reduce Plaintiff's counsel's total hours billed by 1.7 hours.

Next, the court has reviewed Plaintiff's counsel's January 15 and 16, 2026 billing entries for reviewing GM's initial disclosures notice and downloading and reviewing GM's document production, totaling 3.1 hours. (Lee Decl., Exh. A, p. 2.) In light of the routine nature of this matter, the court agrees with GM that Plaintiff's counsel's total time billed reviewing GM's initial disclosures is excessive and exercises its discretion to reduce Plaintiff's counsel's total hours billed by 0.9 hours.

GM next objects to the 2.4 hours billed by Plaintiff's counsel pertaining to client intake tasks including two client conferences, reviewing client documents, and conducting research. (Lee Decl., Exh. A, p. 1.) The court finds that client communication is essential to the litigation process and declines to reduce Plaintiff's counsel's time billed on this basis. Further, the court finds that Plaintiff's counsel's total time billed for conducting research is reasonable.

Additionally, GM challenges the 2.8 hours billed by Plaintiff's counsel on January 22 and 25, 2026 for "email correspondences regarding Plaintiff's initial disclosures and financial documents" and "consult[ing] with client and review[ing] documents while simultaneously compiling and drafting Plaintiff's Initial Disclosures." (Lee Decl., Exh. A, p. 3.) The court agrees with GM that Plaintiff's counsel's total time billed for drafting emails and drafting the templated initial disclosures is excessive and exercises its discretion to reduce Plaintiff's counsel's total time billed by 0.8 hours.

Next, the court has reviewed Plaintiff's counsel's October 21, 23, and 28 2025 billing entries for drafting Plaintiff's complaint, summons, and cover sheet, reviewing the court's Notice of Case Assignment and E-Filing confirmation, reviewing and filing the Proof of Service of Summons, and "review[ing] Proof of Service filing confirmation," totaling 2.1 hours. (Lee Decl., Exh. A, p. 1.) The court finds that reviewing the court's Notice of Case Assignment and E-Filing confirmation and reviewing and filing the Proof of Service of Summons and the related confirmation are purely clerical tasks, and reduces Plaintiff's counsel's total hours billed by 0.5 hours, accordingly. Further, given the routine nature of this case and Plaintiff's counsel's use of templates, the court finds that the total time billed for drafting Plaintiff's complaint, summons, and cover sheet is excessive and exercises its discretion to reduce Plaintiff's counsel's total hours billed by an additional 0.4 hours.

GM also challenges Plaintiff's counsel's 1.0 hour billed on November 21, 2025 for reviewing GM's answer and reviewing and executing GM's proposed stipulation and protective order. (Lee Decl., Exh. A, p. 2.) Due to the routine nature of this matter and GM's use of a standardized answer and proposed protective order, the court finds that Plaintiff's counsel's total time billed here is unreasonable and exercises its discretion to reduce Plaintiff's counsel's total hours billed by 0.3 hours.

Finally, GM objects to Plaintiff's counsel's anticipated 7.0 hours to review GM's opposition, draft a reply, and attend the hearing on the instant motion. (Lee Decl., Exh. A, pp. 4-5.) The court reduces the expected time necessary for a reply brief and motion hearing to 2.0 hours sua sponte as the 7.0 hours requested is inconsistent with what the court believes is

necessary under the circumstances.

In sum, the court has exercised its discretion to reduce Plaintiff's counsel's total hours billed by 4.6 hours, and Plaintiff's counsel's anticipated hours to be incurred pertaining to the instant motion by 4.0 hours.

3. Multiplier

Here, Plaintiff requests the application of a 1.1 multiplier totaling \$1,639.00, which GM challenges as unwarranted.

To determine if a multiplier to an award for attorney's fees is reasonable, the court will consider "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Here, although this matter involves a contingency fee, Plaintiff has not presented evidence to indicate that this case involved any novel legal issues or required exceptional skill. Additionally, Plaintiff has not presented evidence to show that the nature of the litigation involved in this matter precluded other employment by Plaintiff's counsel. Because the majority of the *Ketchum* factors do not support the award of a multiplier, Plaintiff's request for a lodestar multiplier of 1.1 is denied.

Therefore, the court will reduce Plaintiff's requested fees by \$1,639.00.

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$10,100.00, consisting of \$9,100.00 in previously incurred fees and \$1,000.00 in anticipated fees pertaining to this motion.

C. Costs

The California legislature intended the word "expenses" in the Song-Beverly Act to cover outlays not included in the detailed statutory definition of "costs," and the legislative history of the Song-Beverly Act further demonstrates that the legislature exercised its power to permit the recovery by prevailing buyers of a host of litigation expenditures. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138.)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the

items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

Any effort to tax or strike costs must occur in the form of a motion to strike or to tax costs and must be served and filed fifteen (15) days after service of the cost memorandum. (California Rules of Court, Rule 3.1700(b)(1).) After the 15-day deadline to file a motion to tax costs has passed, the court clerk must immediately enter the costs. (California Rules of Court, Rule 3.1700(b)(4).)

A "'verified memorandum of costs is prima facie evidence of [the] propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486.)

Here, GM has failed to meet its burden of challenging the requested costs. GM has not filed a motion to strike or tax costs, as required by Rule 3.1700(b)(1).

The court notes that Plaintiff has not separately filed a memorandum of costs but has instead attached a memorandum of costs as Exhibit 3 to Plaintiff's counsel's declaration. The court has reviewed Plaintiff's memorandum of costs and finds the requested costs to be proper on their face.

Accordingly, Plaintiff's request for \$595.25 in costs is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of \$10,695.25, consisting of \$9,100.00 in previously incurred fees, \$1,000.00 in anticipated fees pertaining to the instant motion, and \$595.25 in costs.

Moving party is ordered to give notice of ruling.